

1. License Grant

Company hereby grants Customer a non-exclusive, non-transferable, non-sublicensable license to access and use the Software solely for internal business purposes during the Term.

2. Term

This Agreement shall commence on the Effective Date and shall continue for a period of one (1) year unless earlier terminated in accordance with this Agreement.

3. Termination for Convenience

Either party may terminate this Agreement without cause upon thirty (30) days' prior written notice to the other party.

4. Termination for Cause

Either party may immediately terminate this Agreement upon material breach by the other party if such breach remains uncured for fifteen (15) days after written notice.

5. Confidentiality

Each party agrees to maintain the confidentiality of all proprietary or confidential information disclosed under this Agreement and shall not disclose such information to any third party without prior written consent.

6. Cap on Liability

In no event shall either party's aggregate liability under this Agreement exceed the total fees paid by Customer to Company during the twelve (12) months preceding the claim.

7. Uncapped Liability

The limitation of liability shall not apply to liability arising from fraud, willful misconduct, or infringement of intellectual property rights.

8. Indemnification

Customer shall indemnify, defend, and hold harmless Company from any third-party claims arising out of Customer's misuse of the Software.

9. Audit Rights

Company reserves the right to audit Customer's use of the Software upon reasonable prior notice to verify compliance with this Agreement.

10. Assignment

Neither party may assign this Agreement without the prior written consent of the other party, except in connection with a merger or sale of substantially all assets.

11. Change of Control

Company may terminate this Agreement upon a change of control of Customer that materially affects Company's business interests.

12. Intellectual Property Ownership

All intellectual property rights in and to the Software shall remain exclusively owned by Company.

13. Insurance

Customer shall maintain adequate commercial general liability insurance during the Term of this Agreement.

14. Non-Solicitation

Customer shall not solicit or hire employees of Company during the Term and for twelve (12) months thereafter.

15. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of California.